

Court No. - 29

Case :- WRIT - C No. - 23649 of 2019

Petitioner :- M/S Fast Construction

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Akhilesh Singh, Saurabh Yadav

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

On the request of learned counsel for respondents no. 2 and 3 put up on Monday ie. 5.8.2019 as fresh.

Order Date :- 2.8.2019

SKS

Court No. - 1

Case :- WRIT - C No. - 23649 of 2019

Petitioner :- M/S Fast Construction

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Akhilesh Singh, Saurabh Yadav

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

As prayed, put up tomorrow, i.e., on **06.08.2019.**

Order Date :- 5.8.2019

Nitin Verma

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 1

Case :- WRIT - C No. - 23649 of 2019

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Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Akhilesh Singh, Saurabh Yadav

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J. Sri

An adjournment has been sought on behalf of Sri Saurabh Yadav, learned counsel for the petitioner on the ground that because of some personal difficulty he could not come to the Court today. Sri Gyanendra Kumar holding brief of Sri R.K. Sachan, learned counsel for the respondent nos. 2 and 3 is present and so also learned Standing Counsel for the State.

As prayed, let the matter be listed on Thursday, i.e., on 8.8.2019 in the additional cause list.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 6.8.2019

Shiraz

Court No. - 1

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Petitioner :- M/S Fast Construction

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Akhilesh Singh, Saurabh Yadav

Counsel for Respondent :- C.S.C., Rajesh Kumar Sachan

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Shivam Yadav, Advocate, holding brief of Sri Saurabh Yadav appearing for the petitioner and Sri Gyanendra Kumar, Advocate, holding brief of Sri Rajesh Kumar Sachan, appearing for respondent nos. 2 and 3.

We have perused the record.

By means of this writ petition, the petitioner has prayed for the following relief:

"(i) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no.3 to restore the electricity connection of the petitioner forthwith which has been disconnected on 10.07.2019 despite payment of up-to-date bills;

(ii) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no.2 & 3 not to initiate any coercive proceedings against the petitioner."

The arguments advanced by learned counsel for the petitioner in support of the pleadings raised in the writ petition is that the petitioner has initiated for restoration of connection as he has already made deposit in respect of the bills raised by the respondent-corporation to the tune of Rs. 69,000/- and he submits that there is no reason for not restoring the connection. It is further argued that the last date was 23.07.2019 as per the electricity bill-cum-disconnection notice and, therefore, disconnection could not have been done prior to the said date and yet disconnection has been done prior to the said date.

On being confronted with the aforesaid arguments, learned counsel for the respondent submits that the petitioner has not brought the correct facts on record. According to him, there are outstanding dues to the tune of Rs. 33,00,000/- against the petitioner. He has further submitted that a notice to this effect has already been issued way back on 10.06.2019 which has not been annexed by the petitioner while preferring the present writ petition.

Be that as it may, it clearly transpires from the record that the controversy arises out of some dispute regarding the bill in respect of the electricity connection of the petitioner. The instructions that have been placed before the Court and which have been taken on record show that the assessment of bill was wrongly done by applying a wrong multiplier of 1 instead of 40.

In view of the above facts and circumstances of the case and the pleadings advanced by learned counsel for the parties, we are of the opinion that the

matter requires examination and scrutiny at the level of the department itself. U.P. Electricity Supply Code, 2005 takes full care of such situation. The petitioner can avail remedy under Clause 6.5 of U.P. Electricity Supply Code, 2005 that runs as under:

"6.5 Disputed Bills and Arrears

(a) If there is an error of a non-pecuniary nature (incorrect name, address etc.) in the bill the complaint shall be registered with the concerned competent authority. Corrections, if any required, shall be made in the next bill. The consumer shall be required to make the payment before due date.

(b) If a consumer disputes the accuracy of any bill he may either make the payment under protest of (i) an amount equal to the sum claimed from him, or (ii) the electricity charges due from him for each month calculated on the basis of average charge for electricity paid by him during the preceding six months, whichever is less, and file a complaint with the competent authority, as the case may be, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.

(i) If the Complaint is found to be correct by competent authority a revised bill shall be issued within 7 days of the complaint and consumer shall be given 7 days to make the payment. The Consumer shall not be charged any late payment surcharge (and he shall be eligible for timely payment rebate, if any applicable) if the payment is made by the revised date. If payment has already been made, excess amount shall be adjusted in subsequent bills.

(ii) If the complaint was found to be incorrect the consumer shall be notified and directed to make the payment, if not already paid, as per the original bill immediately and the consumer shall be liable to pay the late payment surcharge.

c) If a consumer has cleared his dues as specified in the bill, and still some part of it is shown as an arrear in the next bill, the consumer may lodge a complaint with the Licensee. However, if this arrear is again reflected in the next billing cycle also the consumer shall be entitled for compensation as prescribed in Annex-7.1.

(d) In case licensee raises a bill for supply of energy to permanently disconnected connection e.g. six months after temporary disconnection, the Consumer may intimate the MD of the licensee under proper receipt and if no action is still taken within next 15 days, shall be entitled for compensation as prescribed in Annex-7.1, and a penalty of Rs. 500/- per such bill shall be payable by licensee. The licensee shall submit a quarterly statement to the Commission giving zone wise details of such bills along with compensation given on this account during the quarter."

At this stage, learned counsel for the petitioner submits that his client has not been supplied with complete assessment order and bill.

In such circumstances, therefore, it is hereby provided that the respondents shall provide the necessary documents to the petitioner within a period of 10 days from the date of production of certified copy of this order.

In the event of such documents being given to the petitioner, he shall file objection under the aforesaid provisions of Electricity Supply Code, 2005 before appropriate authority within two weeks from the date of receipt of provisional/ final assessment order and requisite documents. The appropriate authority shall dispose of such objection by means of reasoned and speaking order within a further period of two weeks.

We further observe that the petitioner shall have the liberty to avail remedy of making deposit as per self assessment provided for under section 6.5 (b) and in the event of such deposit being made, the respondent shall consider the same and shall pass appropriate order. The restoration of electricity connection will depend upon the outcome of the order that may be passed.

With the aforesaid observations, this petition is finally disposed of.

(Ajit Kumar, J.) (Ramesh Sinha, J)

Order Date :- 8.8.2019

Madhurima